

11. 9:00 AM CASE NUMBER: C25-01753

CASE NAME: HAROLD KUSHINS VS. JAY UTAL

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: WALKER, KENNETH

TENTATIVE RULING:

Defendant Kenneth Walker's meet and confer declaration shows that the moving party has not yet complied with Code of Civil Procedure (CCP) § 430.41. The Court continues the demurrer hearing on its own motion to **9:00 a.m., Friday, March 20, 2026, in Department 32.**

The Court reminds the parties that pursuant to CCP § 430.41(a) they are required to discuss the alleged deficiencies with the complaint in person, by telephone or by video conference before each and every demurrer or motion to strike. As the court noted in *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355, fn. 3:

[T]rial courts are not required to ignore defects in the meet and confer process. If, upon review of a declaration under section 430.41, subdivision (a)(3), a court learns no meet and confer has taken place, or concludes further conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort.

Defendant Kenneth Walker shall file a CCP § 430.41 meet and confer declaration by **Friday, March 6, 2026**, showing compliance with the requirement to meet and confer "in person, by telephone, or by video conference." (CCP § 430.41, subd. (a).)

12. 9:00 AM CASE NUMBER: MSC17-01486

CASE NAME: DOSKOCZ VS. ALS

***ENFORCEMENT OF JUDGMENT**

FILED BY:

TENTATIVE RULING:

The court orders all parties to appear at hearing.
Zoom appearance is acceptable and even preferred.

13. 9:00 AM CASE NUMBER: MSC19-01240

CASE NAME: SONNENSHEIN VS PACIFIC UNION

HEARING ON SUMMARY MOTION ADJUDICATION

FILED BY: SONNENSHEIN, STACEY

TENTATIVE RULING:

Before the Court is a motion by plaintiffs for summary adjudication against defendant Pacific Union International, Inc. on an issue of duty under Civil Code section 1088(b). For the reasons set forth, the motion is **denied without prejudice** as stated below.